

CANADIAN SOCIETY OF CUSTOMS BROKERS (12-2023)

AGENCY AGREEMENT AND POWER OF ATTORNEY TO ACCOUNT FOR A SINGLE IMPORTATION

("Power of Attorney")

I/We (Insert Full Legal Name of Client and the specific business number ("**Business Number**") issued by Canada Revenue Agency ("**CRA**") associated with the Client signing this Power of Attorney and its specific business for which Customs Broker will provide Services under this Power of Attorney)_____of

(Insert Client's Complete Address)_____
("**Client**" or "**Importer**") appoint, constitute, engage, authorize and direct Hemisphere Freight & Brokerage Services Inc., Business Number R102322807,

a Customs Broker licensed under the Customs Act, of 21 Goodrich Road, Unit 3, Toronto, ON, M8Z 6A3

("Customs Broker") as and to be Client's true and lawful agent and attorney, to act, transact business and fulfill and perform on Client's behalf the below-described services, in connection with the following import transaction:

Importer's Full Legal Name and its CARM Client Portal business account number (if applicable):	
Importer's Full Address (including postal code/zip code):	
Full Legal Name of Exporter/Vendor:	
Exporter/Vendor Full Address (including postal code/zip code):	
Nature and Value of Goods (indicate currency):	
Purchase Order, Commercial Invoice or Shipment Number (" Invoice "): [Attaching the commercial invoice is recommended]	
Importer's specific Business Number associated with the Client signing this Power of Attorney and its specific business for which Customs Broker will provide Services under this Power of Attorney (to be left blank if Customs Broker will use its own Business Number on behalf of Importer for purposes of Shipment)	

IN CONNECTION HEREWITH, Client:

- represents and warrants that each of the Invoice, and all other accounts (including, without limitation, Client's CARM Client Portal business account, where Client is a commercial importer), profiles, data, rulings, reports, documents, declarations and information (including, without limitation, those relating to classification, origin and valuation) covering this importation, as now produced and/or provided by Client to Customs Broker, as well as Client's Business Number designated for the purpose of this importation transaction where applicable, is/are true, accurate and complete, cover(s) all of the goods included in the shipment, and contain(s) all of the required information in connection with this importation; to the extent not already provided by Client to Customs Broker, Client shall promptly provide all of the foregoing items to Customs Broker; Client acknowledges and agrees that Customs Broker is relying upon the truth, accuracy and completeness of all materials, documents and information provided to Customs Broker to be able to perform and provide services to Client;
- authorizes and directs Customs Broker, as Client's agent and attorney, to act on its behalf on all matters relating to the import transaction as agreed by Customs Broker and Client, including without limitation: the set up, administration and/or management of Client's account (including, without limitation, Client's CARM Client Portal business account where

applicable); advance data filing for admissibility purposes; obtaining the release of and/or accounting for goods; preparation and filing of Commercial Accounting Declarations, adjustments and corrections, documents and reports; document and data preparation; facilitating the payment of disbursements, duties, taxes, penalties, interest, expenses, fees, claims or other charges, levies or liabilities imposed by a Government Authority (defined below), and other required amounts in respect of imported goods reported, released and/or exported or to be reported, released and/or exported; facilitating and assisting with bonds, financial security and other security requirements; facilitate the receipt of refunds, credits, adjustments and/or payments from each applicable Government Authority; facilitate and assist with (i) advance rulings and matters related to classification, valuation and origin; and (ii) post-transaction/entry accounting corrections, classifications, origin matters, valuation and other adjustments; such other business, tasks, duties, powers and authorities requested by Client and agreed to be performed by Customs Broker; and such other matters ancillary to any of the foregoing; Client acknowledges and agrees that Customs Broker may require a specific indemnity in connections with the foregoing obligations and the services it will perform for and on behalf of Client;

3. where applicable, shall (a) correctly, and on a timely basis, select and delegate to Customs Broker in any applicable electronic portal or system set up and administrated by Canada Border Services Agency ("CBSA") from time to time, including, without limitation, the electronic client portal for CBSA's Assessment and Revenue Management system ("CARM Client Portal"), and maintain all necessary authorities, full visibility, user access and privileges, sharing and provision of information, including in each section and all components of each section, in the CARM Client Portal to ensure that Customs Broker has access to the necessary authority and information, and full authority, to perform the requested services for Client; (b) fully understand the CARM Client Portal; (c) agree to, and comply with, the terms and conditions of the CARM Client Portal, as amended from time to time, to ensure that CBSA does not suspend or revoke access to the CARM Client Portal; and (d) ensure that neither its CARM Client Portal business account for the CARM Client Portal nor the authority delegated to Customs Broker therein expires; otherwise, in each of the foregoing events, Client acknowledges and agrees that Customs Broker will not be able to perform the services described in this Power of Attorney for the Client, and Customs Broker will not in any way be liable for any of the foregoing or Client's failure to comply with the terms of this Power of Attorney;
4. confirms that this Power of Attorney (a) constitutes all notices and authorizations required by any government body, including without limitation the CBSA, that administers trade programs (each, a "Government Authority") with respect to all matters for which such notices and authorizations are required for an agent or attorney to act on Client's behalf; and (b) authorizes Customs Broker to act on Client's behalf regarding documentary compliance with all applicable programs of Governmental Authorities involving the import or export of goods;
5. confirms, acknowledges and agrees that, notwithstanding any other provision of this Power of Attorney or the Standard Trading Conditions attached hereto as Schedule A, or any delegation of authority in the CARM Client Portal, including (without limitation) to manage Client's CARM Client Portal business account, in any circumstances howsoever and whenever arising, and regardless of (a) whether Customs Broker uses its own business number or Client's business number, (b) who any Government Authority identifies as the importer of record, and (c) any liability assessed by any Government Authority, Client, in each case, expressly acknowledges and agrees that (A) Customs Broker is not responsible for any aspect of the operation, hosting, maintenance and/or functioning of the CARM Client Portal, or any aspect of health, revenue, product liability, safety, security and/or other liability in connection with the CARM Client Portal, any services provided by Customs Broker and/or any goods dealt with by Customs Brokers hereunder, including (without limitation) any liabilities resulting from or assessed by any Government Authority, and Customs Broker is not liable in any way for any of the foregoing, including (without limitation) to the extent that Customs Broker is unable to access the CARM Client Portal or to perform any of the services due to the status of the CARM Client Portal or any incomplete or inaccurate information, documents or materials provided to Customs Broker by Client; (B) Client is at all times the importer/exporter of and for the goods; (C) Customs Broker is acting at all times as Client's agent and attorney, for and on behalf of Client as the principal at and in law, without any liability to Customs Broker; (D) Client remains responsible to access and review its CARM Client Portal business account and to respond to and comply with all reports, reassessments, enquiries, notices and notifications, both informal (i.e., nudges) and formal (i.e., compliance verification or validation letters and directed compliance letters), posted by CBSA in Client's CARM Client Portal business account regarding, amongst other things, actual or potential non-compliance; any delay or failure of Customs Broker to notify Client of any such CBSA notices or notifications does not (i) make Customs Broker liable therefor or (ii) release Client from its obligations to respond to and comply with such CBSA notices and notifications; the foregoing applies to all forms of reports, reassessments, enquiries, notices and notifications for Client from any Government Authority; (E) Client is liable, and will fully indemnify and hold Customs Broker harmless, for all duties, taxes, penalties, interest, charges, levies, expenses, fees, claims, liabilities, and/or other amounts paid or payable in connection with any services performed and/or documents signed by Customs Broker for, in the name of and/or on behalf of Client in connection with any services or under this Power of Attorney, including (without limitation) in respect of goods imported or exported by Customs Broker on behalf of Client, to any Government Authority, whether or not Client provides Customs Broker with the required visibility, user access and privileges, including in each section and all components of each section, within the CARM Client Portal and/or the required account, profile, data, rulings, reports, documents, declarations and/or information; and (F) any amounts paid on Client's behalf to any party and/or to Client's account (where applicable) by Customs Broker, as Client's agent and attorney, or by Sub-Agent (as defined below) for Customs Broker, shall be a debt due by Client to Customs Broker as Client's agent and attorney; to the extent that Customs Broker pays any amount to any Government Authority on account of Customs Broker's error, but the Government Authority credits, refunds or pays Client for such amount, then Client agrees that such amount is the property of Customs Broker and Client shall promptly direct and authorize the applicable Government Authority to, or shall itself, deliver, pay or credit, such amount to Customs Broker; if Customs Broker receives any credits, refunds or amounts from any Government Authority in connection with payments Client (and not Customs Broker) paid or advanced, then, subject to Customs Broker's right of set off provided in the Standard Charge Terms, Customs Broker will pay that amount to Client; Customs Broker is not required to pay any amounts to any third party (i.e., customer of Client) other than a Government Authority (on behalf of, and as agent of, Client) and it is Client's obligation to pay and refund its customers and such other third parties; Client agrees that Customs Broker may make a claim against Client hereunder at any time within that period of time that is 1 year longer than the period of time within which any applicable Government Authority may re-assess or re-determine the valuation, origin or classification of imported or exported goods, or take such other action or make such other declaration, order or ruling, that may affect Customs Broker;
6. grants Customs Broker, as Client's agent and attorney, full power and authority to (a) appoint as Customs Broker's sub-agent any other person to whom a license to transact business as a customs broker has been issued under the Customs Act ("Sub-Agent") to transact the aforesaid business, or part thereof, in the name of and as an agent of Customs Broker and on Client's behalf, but only to the extent of Customs Broker's authority; (b) revoke any such appointment; and (c) appoint another Sub-Agent (to act only to the extent of Customs Broker's authority) in the place of any Sub-Agent whose appointment has been revoked, as Customs Broker, as Client's agent and attorney, shall from time to time think fit;
7. agrees that (a) this Power of Attorney, and all transactions hereunder and/or conducted in the CARM Client Portal, are governed by the Standard Trading Conditions attached hereto as Schedule A, which Standard Trading Conditions form

- part of, and are incorporated by reference into, this Power of Attorney and that by signing this Power of Attorney, Client acknowledges and agrees to all of the terms and conditions set out in the attached Standard Trading Conditions; (b) it is Client's responsibility to review the Standard Trading Conditions; (c) Customs Broker may amend the Standard Trading Conditions from time to time and will send such amended Standard Trading Conditions to Client, post same on Customs Broker's website in a manner accessible to Client, or otherwise make them available to Client; and (d) whether or not Client reviews the Standard Trading Conditions, Client agrees to, is bound by, and will comply with all of the terms and conditions set out in the Standard Trading Conditions, as amended from time to time by Customs Broker;
8. agrees, acknowledges, understands and confirms that (a) this Power of Attorney authorizes Customs Broker to act on behalf of Client and its business in connection with Client's specific CRA Business Number listed above in the identification of the parties, but no other CRA business number; if Client wishes to give authority to Customs Broker to act on behalf of another entity or business with its own CRA business number, then Client will enter into a separate Power of Attorney with Customs Broker pertaining to that other CRA business number; (b) it is Client's responsibility, and not Customs Broker's, to obtain and maintain all RM accounts for Client's CRA Business Number required to access Client's CARM Client Portal business account within the CARM Client Portal; and (c) unless otherwise directed, Customs Broker has the authority to act on Client's behalf with respect to all RM accounts associated with Client's specific CRA Business Number; and
9. ratifies and confirms, and agrees to ratify and confirm, all that Customs Broker, as Client's agent and attorney, may do, or has done, by virtue hereof and under the authority of this Power of Attorney and/or as authorized and directed in the Client's CARM Client Portal business account, including in the CARM Client Portal.

Client has duly issued, executed and delivered this Power of Attorney by the signatures of its duly authorized officers or signatories in the City of _____, in the Province/State and Country of _____, as of and with effect from this _____ day of _____, 20_____.

FULL LEGAL NAME OF CLIENT: _____

PER:

Date		Signature	
Tel.		Print Name and Office Held:	
Email		[Signature must be that of a duly authorized official (ex. President, Vice President, Owner, COO, CFO, etc.)] <i>I have the authority to bind the Corporation</i>	
Witness			
Name			
Date			

ACCEPTED THIS _____ DAY OF _____, 20_____ BY CUSTOMS BROKER.

FULL LEGAL NAME OF CUSTOMS BROKER: HEMISPHERE FREIGHT & BROKERAGE SERVICES INC.

PER:

Date		Signature	
Tel.		Print Name and Office Held:	
Email		[Signature must be that of a duly authorized official (ex. President, Vice President, Owner, COO, CFO, etc.)] <i>I have the authority to bind the Corporation</i>	
Witness			
Name			
Date			

